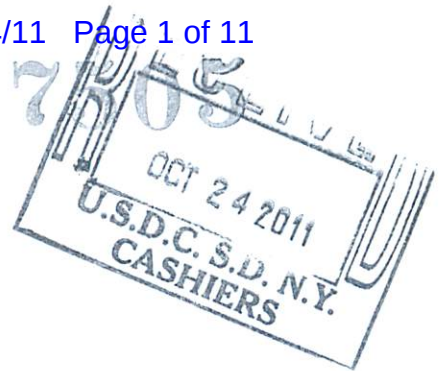


JUDGE DANIELS
11 CIV 7505-11

Vikrant Pawar, Esq.
Robert Blossner, Esq.
30 Vesey Street, Suite 900
New York, New York 10007
Attorneys for Plaintiff



UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
TEARLE GRANT,

Plaintiff,

COMPLAINT

-against-

Jury Demand

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPT., P.O. CHARLES ALEXANDER
JOHN AND JANE DOES, 1-10, ET AL.,

Defendants.
-----X

NEW YORK
OFFICE OF COMMUNICATIONS
2011 OCT 24 PM 4:26

Plaintiff TEARLE GRANT (hereinafter "Plaintiff") by and through his attorneys, Vikrant Pawar, Esq., and Robert Blossner, Esq., respectfully allege as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §§ 1981, 1983 and 1988 for violations of his civil rights, as secured by statutes and the Constitutions of the State of New York and the United States.

JURISDICTION

2. The action is brought pursuant to 42 U.S.C. §§1981, 1983 and 1988, and the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitutions and under New York state laws.

3. Jurisdiction is found upon 28 U.S.C. §§1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Southern District of New York under 28 U.S.C. § 1391(b), in that it is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in the matter pursuant to Fed. R. Civ. P. 38 (b).

CONDITIONS PRECEDENT

6. Plaintiff has duly complied with conditions precedent to the lawsuit by duly and properly filing a notice of claim within ninety (90) days of the occurrences of the events giving rise to her lawsuit.

PARTIES

7. Plaintiff is a citizen of the United States, and at all relevant times was a resident of the County of Bronx, State of New York.

8. Defendant City of New York (hereinafter "City") was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

9. Defendant New York City Police Department (hereinafter “NYPD”) is an agency that is controlled and operated by the City and is duly organized and formed by defendant City under and by virtue of the laws of the State of New York.

10. Defendant Police Officer Charles Alexander is/was a member of the NYPD and was assigned to the 47th precinct at the time of the incident.

11. Defendants John and Jane Does who are yet to be identified and the yet to be named as individual defendants are employees of defendant City and other government entities and are sued in their individual and official capacities and are alleged to have acted under the color of state.

FACTS

12. On or about July 22, 2008, plaintiff went to Montefiore Medical Center – North Division because plaintiff’s infant daughter was ill and he was summoned there by his girlfriend.

13. After plaintiff’s daughter was treated, plaintiff, his girlfriend and daughter walked to plaintiff’s girlfriend’s home. Plaintiff then left and started walking towards his mother’s home few blocks away.

14. While on route to his mother’s home, several marked police cars pulled up next to plaintiff and he was immediately arrested and searched.

15. Defendants refused to provide plaintiff with an explanation for his arrest and search.

16. After finding nothing on plaintiff or in the surrounding area, defendants proceeded to plaintiff's girlfriend's home and thoroughly ransacked it looking for evidence without a search warrant or probable cause.

17. Based upon a New York City Criminal Court Complaint sworn to by defendants plaintiff was charged with an alleged shooting and other assorted crimes.

18. When taken into custody, Plaintiff stated to the arresting officers that he had just left Montefiore Medical Center where he had been with his girlfriend and daughter for some time while his daughter was being treated. The arresting officers did not check out the plaintiff's apparent alibi at the time of plaintiff's arrest nor was any effort made to do so for some months after the arrest despite the fact that the defendants were full aware that Montefiore Medical Center maintained a very sophisticated and redundant system of multiple video surveillance cameras that eventually did establish plaintiff's being at the Hospital at the time of the alleged shooting.

19. Despite the defendants being informed and aware that plaintiff was nowhere near the area of an alleged shooting and failing to confirm plaintiff's statement that he was at the hospital at the time of the alleged shooting, defendants caused the above described criminal complaint to be filed against plaintiff which contained eleven (11) counts:

- (a). Attempted murder in the second degree,
- (b). Attempted assault in the first degree,
- (c). Criminal possession of a weapon in the second degree,
- (d). Criminal possession of a weapon in the second degree,
- (e). Reckless endangerment in the first degree,

- (f). Criminal possession of a weapon in the third degree,
- (g). Attempted assault in the second degree,
- (h). Attempted assault in the second degree,
- (i). Reckless endangerment in the second degree,
- (j). Criminal possession of a weapon in the fourth degree,
- (k). Attempted assault in the third degree.

20. Plaintiff was arraigned and unable to make bail because of the overwhelming nature of the false charges that had been lodged against him.

21. Plaintiff was informed, and verily feared that he faced the possibility of twenty five (25) or more years in jail.

22. On August 28, 2009, nearly thirteen (13) months after his false arrest, all charges against plaintiff were dismissed on motion by the District Attorneys office.

23. Throughout this entire ordeal, plaintiff was scared, afraid and concerned for his family because he faced those twenty five years in jail based on the false information provided by defendants and because of defendants' utter failure to conduct even a cursory investigation or check out plaintiff's alibi.

AS AND FOR A FIRST CAUSE OF ACTION
(Section 1981)

24. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "23" with the same force and effect as if fully set forth herein.

25. Plaintiff was arrested solely because of his race and the color of his skin.

26. There was no probable cause for the arrest or the continued incarceration

of plaintiff and as such the arrest and incarceration resulted in violation of Plaintiff constitutional rights secured under 28 U.S.C. Section 1981.

27. As a result of the aforementioned conduct of defendants, Plaintiff's sustained physical and emotional injuries.

AS AND FOR A SECOND CAUSE OF ACTION
(Deprivation of Rights under the Fourteenth Amendment-Due Process)

28. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "27" with the same force and effect as if fully set forth herein.

29. The defendants' conduct herein was an abuse of executive power so clearly unjustified by any legitimate objective of law enforcement as to be barred by the Fourteenth Amendment. The actions by defendants deprived the substantive and procedural due process afforded to plaintiff and in violation of Plaintiff's constitutional rights under the Fourth and Fourteenth Amendments.

30. As a result of the foregoing, Plaintiff was deprived of his liberty and right to procedural and substantive due process, causing economic and severe and permanent emotional and physical injuries.

AS AND FOR A THIRD CAUSE OF ACTION
(Deprivation of Fourth Amendment Rights)

31. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "30" with the same force and effect as if fully set forth herein.

32. Defendants falsely arrested plaintiff based solely on his race, searched and seized him without any probable cause and searched his girlfriend and daughter's home without securing a search warrant and unreasonably intruded into their lives.

33. Defendants actions subjected plaintiff to violation of his state and federal rights.

AS AND FOR A FOURTH CAUSE OF ACTION
(Malicious Prosecution)

34. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "33" with the same force and effect as if fully set forth herein.

35. At all times during his incarceration, plaintiff was ready to proceed with trial to prove his innocence. However, the defendants were never prepared for trial or failed to show up. Plaintiff was forced to appear before the court countless times when a simple alibi investigation by the defendants would have obviated the need for any further proceedings after the arrest.

36. As a result of defendants' conduct, plaintiff lost his liberty and was denied procedural and substantive due process rights and maliciously prosecuted for over

37. As a result of defendants' conduct, plaintiff suffered injuries.

AS AND FOR A FIFTH CAUSE OF ACTION
(Monell/Municipal Liability)

38. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "37" with the same force and effect as if fully set forth herein.

39. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

40. The aforementioned customs, policies, usages, practices, procedures and rules of the City and Police Department included, but were not limited to, detaining individuals without probable cause and charging them with a crime without due process and based on their race. In addition, the City and Police Department engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training and supervising its employees, which was the moving force behind the violation of Plaintiff rights as described herein.

41. As a result of the failure of the City and Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendants have tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

42. The foregoing customs, policies, usages, practices, procedures and rules of the defendants constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff and were the direct and proximate cause and the moving force of the constitutional violations suffered by Plaintiff as alleged herein.

43. Defendants, collectively and individually were directly and actively involved in violating Plaintiff's constitutional rights.

AS AND FOR A SIXTH CAUSE OF ACTION

(Excessive Bail under the Eighth Amendment)

44. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "43" with the same force and effect as if fully set forth herein.

45. Due to defendants' unlawful conduct and false testimony, plaintiff's bail was set at an excessively high rate, a rate that defendants knew plaintiff would be unable to make and as a result remain incarcerated unlawfully.

46. As a result of defendants' conduct, plaintiff's right to be free from excessive bail under the Eighth Amendment were violated.

AS AND FOR A SEVENTH CAUSE OF ACTION

(Negligent Screening, Hiring, and Retention under the laws of the State of New York)

47. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraph numbered "1" through "46" with the same force and effect as if fully set forth herein.

48. Upon information and belief, defendant City failed to use reasonable care in the screening, hiring and retention of the aforesaid individual defendants who conducted and participated in the violation of plaintiff's rights.

AS AND FOR AN EIGHTH CAUSE OF ACTION

(Negligence under the laws of the State of New York)

49. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "48" with the same force and effect as if fully set forth herein.

50. Plaintiff's injuries herein were caused by the carelessness, recklessness

and negligence of the defendants and their employees and agents, who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

AS AND FOR A NINTH CAUSE OF ACTION

(Respondeat Superior liability under the laws of the State of New York)

51. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "50" with the same force and effect as if fully set forth herein.

52. Defendant City is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

AS AND FOR A TENTH CAUSE OF ACTION

(Intentional and Negligent Infliction of Emotional Distress under the laws of New York)

53. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "52" with the same force and effect as if fully set forth herein.

52. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

53. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant City.

54. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant City.

55. The aforementioned conduct was intentional and for the sole purpose of causing severe emotional distress to Plaintiff.

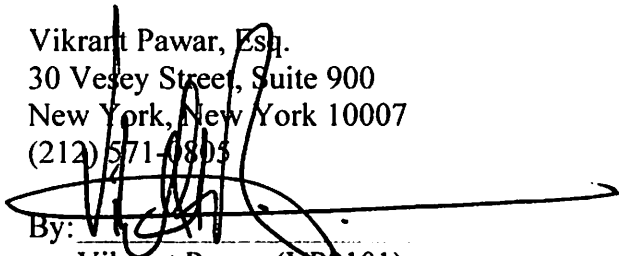
56. As a result of the aforementioned conduct, Plaintiff suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

WHEREFORE, Plaintiff demands judgment and prays for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount Five Hundred Thousand Dollars for each and every cause of action for plaintiff against defendants (individually or collectively) or as determined by a jury:
- (B) punitive damages in an amount to be determined by a jury:
- (C) reasonable attorney's fees and the costs, expenses and disbursements of this action; and
- (D) such other and further relief as appears just and proper.

Dated: New York, New York
October 24, 2011

Vikrant Pawar, Esq.
30 Vesey Street, Suite 900
New York, New York 10007
(212) 571-0803

By: 

Vikrant Pawar (VP9101)
Robert Blossner (RB0526)
Attorneys for Plaintiff